

IN THE SUPREME COURT OF PAKISTAN
(APPELLATE JURISDICTION)

PRESENT:

JUSTICE MALIK SHAHZAD AHMAD KHAN
JUSTICE AQEEL AHMED ABBASI

Criminal Petition No.340 of 2026

(On appeal against the judgment dated 09.02.2026 passed by the Peshawar High Court, Abbottabad Bench in Cr. Misc. (BA) No.43-A/2026)

Usama Chaudhry

...Petitioner(s)

Versus

The State through A.G. KPK & another

...Respondent(s)

For the Petitioner(s): Mr. Jameel Hussain Qureshi ASC
Syed Rifaqat Hussain Shah AOR

For the State: Mr. Altaf Khan, Additional Advocate
General KPK

For the Complainant: Nemo

Assisted by: Ghulam Muhammad Adnan, Law Clerk

Date of Hearing: 09.03.2026

ORDER

MALIK SHAHZAD AHMAD KHAN, J:- Instant petition has been filed by the petitioner against the impugned judgment dated 09.02.2026, in Cr. Misc. (BA) No.43-A/2026, passed by the learned Peshawar High Court, Abbottabad Bench with the prayer to set-aside the said judgment and grant post arrest bail to the petitioner in case FIR No.555, dated 07.11.2025, under section 489-F PPC, registered at police station Hattar, District Haripur.

2. Arguments heard. Record perused.

3. As per contents of the FIR, the complainant was owner of a poultry factory in Hattar Industrial Estate, District Haripur, KPK. On 25.10.2025, the complainant sold poultry articles of the value of Rs.26,00,000/- to the petitioner and for the sale consideration of said articles, the petitioner

handed over a cheque bearing No.55597534, of the above-mentioned amount to the complainant but the same was dishonoured on its presentation by the concerned bank, hence the FIR of this case.

4. The entire prosecution case is based upon documentary evidence (dishonoured cheque and bank slip), which is already in possession of the prosecution and as such there is no chance of tampering with the same. The petitioner is in judicial lockup and he is no more required for further investigation, therefore, in such circumstances no useful purpose shall be served by keeping the petitioner behind the bars and as such a case for grant of post arrest bail is made out in favour of the petitioner. Reference in this context may be made to the judgment reported as "Saeed Ahmad v. The State" (1996 SCMR 1132).

5. Moreover, the offence mentioned in the FIR does not fall within the ambit of prohibitory clause of section 497 Cr.P.C and grant of bail in such like cases is a rule while refusal is an exception. No exceptional ground has been pointed out by learned Additional Advocate General to refuse bail to the petitioner, hence, the petitioner is entitled to the relief of post arrest bail on this ground, as well. Reference in this context may be made to the judgments of this Court reported as 'Khalil Ahmed Soomro and others Vs The State' (PLD 2017 Supreme Court 730), 'Muhammad Tanveer Vs The State and another' (PLD 2017 Supreme Court 733) and "Abdul Saboor vs. The State through A.G. Khyber Pakhtunkhwa and another" (2022 SCMR 592).

It is argued by learned Additional Advocate General that the petitioner is involved in six (06) other criminal cases of similar nature, therefore, he is not entitled to the relief of bail. While placing reliance on the judgment reported as "Muhammad Imran vs. The State and others" (PLD 2021 Supreme Court 903), he argued that the prayer of accused

of the said case for grant of post arrest bail in offence under section 489-F PPC, was declined by this Court because previously the accused of said case was involved in eight other cases of similar nature, therefore, the ground that offence mentioned in the FIR does not fall within the ambit of prohibitory clause of section 497 of Cr.P.C, was not considered as a valid ground for grant of bail to the accused of said case. In this respect, it is noteworthy that in the latest judgment of this Court reported as "Ali Anwar Paracha v. The State and another" (2024 SCMR 1596), passed in a case registered under section 489-F PPC, the above-mentioned question came under consideration and while placing reliance on the judgment passed in the case of "Muhammad Rafique vs. The State" (1997 SCMR 412), as well as, on the other judgments of this Court, it was concluded that mere registration of other criminal cases against an accused by itself does not disentitle him to the relief of bail, if he is entitled to the said relief on merits. Relevant part of the said judgment reads as under:-

8. As far as the argument of learned counsel for the complainant that other cases of similar nature have been registered against the petitioner is concerned, mere registration of other criminal cases against an accused does not disentitle him for the grant of bail if on merits he has a prima facie case. Reliance is placed on Moundar and others v. the State (PLD 1990 SC 934), Muhammad Rafiq v. State (1997 SCMR 412), Syeda Sumera Andaleeb v. The State (2021 SCMR 1227 and Nazir Ahmed alias Bhaga v. The State (2022 SCMR 1467).

It is by now well settled that mere involvement of an accused in some other case(s) by itself is no ground to refuse bail to him, if otherwise, he is entitled to the said concession on merits. Further reference in this context may also be made to the cases of 'Jamal-ud-Din alias Zubair Khan

Vs The State' (2012 SCMR 573) and "Muhammad Rafique vs. The State" (1997 SCMR 412). It is also noteworthy that the abovementioned order of this Court in the case of **Muhammad Imran** *ibid* has been passed at leave stage and that too by a Bench comprising of two Hon'ble Judges of this Court, whereas in cases of **Ali Anwar Paracha**, **Khalil Ahmad Soomro and others**, **Muhammad Tanveer**, **Muhammad Rafique** and **Abdul Saboor** *supra*, judgments have been passed by the Benches comprising of three Hon'ble Judges of this Court. It is by now well settled that the latest order/judgment of this Court and the order/judgment of the larger Bench shall take preference.

6. It is also pertinent to mention here that the offence under section 489-F PPC, is punishable with imprisonment which may extend to three (03) years. Hence it is discretion of the trial Court to award punishment to the petitioner for a period from one (01) day to three (03) years, that too if the prosecution succeeds in proving its case beyond the shadow of any doubt. The petitioner was arrested in this case on 29.11.2025 and as such he has already undergone a period of three (03) months and nine (09) days without the decision of his case on merits. Possibility cannot be ruled out that after the conclusion of the trial, the trial Court would award the punishment of imprisonment to the petitioner for a period which he has already undergone. In the light of above, the bail of the petitioner cannot be dismissed merely on the ground of his involvement in other cases, without considering the other circumstances of the case.

7. Keeping in view all the aforementioned facts, the instant petition is converted into an appeal and the same is allowed. Consequently, the impugned judgment is set-aside and the petitioner is granted post arrest bail subject to his furnishing bail bonds in the sum of Rs.500,000/-

(rupees five hundred thousand only) with one surety in the like amount to the satisfaction of the learned Trial Court.

Islamabad, the
09th of March, 2026
Approved For Reporting
Aitzaz/